EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

SECOND SECTION

DECISION

Application no. 15854/13
György BUDAHÁZY
against Hungary

The European Court of Human Rights (Second Section), sitting on 30 September 2014 as a Committee composed of:

Helen Keller, *President*,
András Sajó,
Robert Spano, *judges*,
and Abel Campos, *Deputy Section Registrar,*

Having regard to the above application lodged on 4 February 2013,

Having deliberated, decides as follows:

THE FACTS

The applicant, Mr György Budaházy, is a Hungarian national, who was born in 1969 and lives in Diósd. Before the Court, he is represented by Mr I. Szikinger, a lawyer practicing in Budapest.

The facts of the case, as submitted by the applicant, may be summarised as follows.

The applicant is a rather well-known political activist. In his own submissions, "his entire activity serves the cause of Hungarians".

In 2011 the applicant was placed in pre-trial detention on charges of terrorism, incitement to terrorism, abuse of firearms and causing grievous bodily harm. Subsequently this measure was modified; and he was placed in house arrest.

On 17 July 2012 the applicant lodged a request seeking temporary release from house arrest to participate in the Hungarian World Congress held between 16 and 20 August 2012. His request was partly granted by the Budapest High Court; and his temporary release was allowed for the day of 20 August 2012. This decision was upheld by the Budapest Court of Appeal on 13 August 2012, acting as a second instance court, endorsing the first-

instance court's reasoning that the applicant's release for several days was incompatible with the reasons for, and purposes of, house arrest.

His further request to be authorised to participate in events celebrating the national day on 23 October 2012 was dismissed on 19 October 2013. On 9 January 2013 the Court of Appeal decided not to examine the merits of his appeal since it had been introduced after the events in question and was thus obsolete.

COMPLAINT

The applicant complains that the fact that he could attend the World Congress for one day only and that he was not released from house arrest to celebrate the national day amounted to unjustified interference with his rights under Articles 10 and 11 of the Convention. He further alleges a violation of his rights to a fair trial and an effective remedy under Articles 6 and 13 of the Convention, because of the belated treatment of his appeal against the dismissal of 19 October 2013.

THE LAW

As to the allegations under Articles 10 and 11, the Court considers, assuming that the measures in question constituted interferences with the applicant's rights under those provisions, that they pursued the legitimate aim of prevention of disorder and crime. Their lawfulness was not called in question. As to whether they were necessary in a democratic society, the Court notes that the applicant was being prosecuted for various serious crimes. His pre-trial detention was at one point replaced with house arrest. In the Court's view, these measures must be regarded as aimed to prevent the applicant from absconding and/or reoffending.

The Court considers that the rights under Articles 10 and 11 of the Convention cannot be construed to enable the applicant to evade coercive measures, whose justification has not been successfully challenged. The authorities' fully enforcing the applicant's house arrest cannot be seen as a disproportionate measure, especially in view of the fact that they granted the applicant authorisation to participate in the World Congress, if for a day only. This complaint is manifestly ill-founded within the meaning of Article 35 § 3 (a) and must be rejected, pursuant to Article 35 § 4.

As to Article 6, even assuming that this provision were to be considered applicable in light of the subject matter of the procedure in question, the Court finds no appearance of a violation of the applicant's rights to a fair trial in light of the material in its possession. In particular, for the Court, the

fact that his second appeal was discarded as obsolete does not render unfair the proceedings as a whole. This complaint is therefore likewise manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention and must be rejected, pursuant to Article 35 § 4.

Moreover, as to Article 13 read in conjunction with Articles 10 and 11, those complaints being manifestly ill-founded, the applicant had no "arguable claim" for the purposes of Article 13. This complaint is therefore incompatible *ratione materiae* with the provisions of the Convention within the meaning of Article 35 § 3 (a) and must be rejected, pursuant to Article 35 § 4.

For these reasons, the Court unanimously

Declares the application inadmissible.

Abel Campos
Deputy Registrar

Helen Keller
President